**IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD**
**COURT - 2**

ITEM No.301

**CP(CAA)/1(AHM)2023**
**in**
**CA(CAA)/74(AHM)2021**

**Proceedings under Section 230-232 of Co. Act, 2013**

**IN THE MATTER OF:**

Ideal Stationery Mfging Company Pvt Ltd **.....Applicant**
Ideal Textile Machinery Components Pvt Ltd
Ideal Sheet Metal Stampings & Pressings Pvt Ltd

**Order delivered on 12/07/2023**

**Coram:**

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

**ORDER**

The case is fixed for pronouncement of order. The order is pronounced in open Court vide separate sheet.

-SD-

**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

-SD-

**SHAMMI KHAN**
**MEMBER (JUDICIAL)**

# NATIONAL COMPANY LAW TRIBUNAL
# AHMEDABAD BENCH
# (COURT NO. II)

## CP (CAA)/01(AHM)2023
## IN
## CA (CAA)/74(AHM)2021

(In the matter of Sections 230-232 the Companies Act, 2013 and other relevant provisions of the Companies (Compromises, Arrangement and Amalgamations) Rules, 2016)

## Composite Scheme of Arrangement/Amalgamation

**Between**

**IDEAL STATIONERY MFGING COMPANY PRIVATE LIMITED**
(Petitioner Company No. 1/ Transferor Company No. 1)

**AND**

**IDEAL TEXTILE MACHINERY COMPONENTS PRIVATE LIMITED**
(Petitioner Company No. 2/ Transferor Company No. 2)

**WITH**

**IDEAL SHEET STAMPING & PRESSING PRIVATE LIMITED**
(Petitioner Company No. 3/ Transferee Company)

**AND**

**Their Respective Shareholders and Creditors**

**Order Pronounced on: 12/07/2023**

**Coram:**
**SHAMMI KHAN,**
**HON'BLE MEMBER (JUDICIAL)**
**AJAI DAS MEHROTRA,**
**HON'BLE MEMBER (TECHNICAL)**

# MEMO OF PARTIES

**In the matter of:**

**Ideal Stationery Mfging Company Private Limited**
(CIN: U29259GJ1974PTC002609)
Registered Office at:
Plot No. 94/2, G.I.D.C Industrial Estate,
Phase-1, Vatva, Ahmedabad, Gujarat-382445.

**… Petitioner Company No. 1/**
**Transferor Company No. 1**

**And**

**Ideal Textile Machinery Components Private Limited**
(CIN: U29259GJ1972PTC002108)
Registered Office at:
Plot No. 94/2, G.I.D.C Industrial Estate,
Phase-1, Vatva, Ahmedabad, Gujarat-382445.

**… Petitioner Company No. 2/**
**Transferor Company No. 2**

**With**

**Ideal Sheet Stamping & Pressing Private Limited**
(CIN: U28999GJ1962PTC001157)
Registered Office at:
Plot No. 94/2, G.I.D.C Industrial Estate,
Phase-1, Vatva, Ahmedabad, Gujarat-382445.

**… Petitioner Company No. 3/**
**Transferee Company**

| | |
|---|---|
| **For the Petitioners:** | Ms. Noopur Dalal, Advocate |
| **For the Income Tax Department:** | Ms. Pankti Shah, Advocate for Ms. Maithili Mehta, Advocate |
| **For the RD:** | Mr. Shiv Pal Singh, Assistant Director |

**ORDER**

1. This joint petition has been filed by the petitioner companies above named under Sections 230-232 of the Companies Act, 2013 and other relevant provisions of the Companies (Compromises, Arrangement and Amalgamations) Rules, 2016 (for brevity 'the Act') seeking sanction of the Composite Scheme of Arrangement/Amalgamation (hereinafter called the "Scheme") of the Ideal Stationery Mfging Company Private Limited (for brevity referred as "Petitioner Company No. 1/Transferor Company No. 1") and Ideal Textile Machinery Components Private Limited (for brevity referred as "Petitioner Company No. 2/Transferor Company No. 2") with Ideal Sheet Stamping & Pressing Private Limited (for brevity referred as "Petitioner Company No. 3/Transferee Company").

2. From the records, it is seen that joint first motion application seeking directions for dispensation of all the meetings of the equity shareholders, secured and unsecured creditors of all the Petitioner Companies was allowed vide order dated 05.08.2022.

3. The 2nd motion joint petition was admitted vide order dated 04.01.2023, issuing Notices to the concerned Regulatory authorities and also directing publication in the newspapers "Western Times" for English and Gujarati language both in

Ahmedabad Edition. Petitioner Companies have filed respective compliance affidavits.

4. The Regional Director, North Western Region, MCA has filed common report on 24.01.2023 along with the report of RoC, Ahmedabad, seeking following directions:

   i) The petitioner companies to undertake the compliance of section 232(3)(i) of the Companies Act, 2013 and to pay fees accordingly.

   ii) The petitioner companies filed the company application one year after the appointed date. As per para 6(c) of MCA Circular no. 09/2019 dated 21.08.2019, "if the 'appointed date' is significantly ante-dated beyond a year from the date of filing, the justification for the same would have to be specifically brought out in the Scheme and it should not be against public interest". No justification is mentioned in the Scheme regarding gap of more than one year between filing of application and appointed date. The petitioner companies to place on record all the relevant facts of the matter.

   iii) The petitioner companies to pay legal fees/costs to the central government.

   iv) The petitioner companies to preserve its books of accounts, papers, and records and not to dispose of them without prior

permission of the Central Govt. as per the provisions of section 239 of the Companies Act, 2013.

v) The petitioner companies to pay the necessary stamp duty on the transfer of property/assets to the respective authorities before the implementation of the scheme.

vi) The petitioner companies to ensure statutory compliance of all applicable laws and also on sanctioning of the present Scheme, the transferor companies shall not be absolved from any of its statutory liabilities, in any manner.

5. The Official Liquidator('OL'), attached with the Hon'ble High Court of Gujarat has filed separate report with common observations for the petitioner company No. 1 & 2 on 28.02.2023, seeking directions as follows:

i) The petitioner company No. 1 & 2 to submit clarification of choosing the appointed date being significantly ante-dated and beyond a year from the date of filing of the 1st motion application or as maybe directed to change as per circular dated 21.08.2019.

ii) The transferor company No. 1 & 2 to preserve its books of accounts, papers and records and not to dispose of them without prior permission of the Central Govt. as per the provisions of section 239 of the Companies Act, 2013.

iii) The transferor company No. 1 & 2 to ensure statutory compliance with all applicable laws and also on sanctioning of the scheme the transferor company shall not be absolved from any of its statutory liability, in any manner.

iv) The petitioner companies to undertake the compliance of section 232(3)(i) of the Companies Act, 2013 and to pay fees accordingly.

v) The transferee company to pay such costs and expenses to the office of the official liquidator for the transferor company, or any such amount as may be considered appropriate by the Bench.

6. The Income Tax Department filed its report dated 09.02.2023 for the petitioner company No. 3 which is transferee company, and following outstanding demands are pending against the petitioner company No. 3:

| Sr. no. | A.Y. | Demand section | Date of order | Demand outstanding (in Rs.) | Amount difficult to recover (in Rs.) | Amount collectible (in Rs.) |
|---|---|---|---|---|---|---|
| 1 | 2020-21 | 143(3) | 05.09.2022 | 7,60,010 | 0 | 7,60,010 |
| 2 | 2020-21 | 1431a | 18.12.2021 | 7,15,450 | 0 | 7,15,450 |

penalty proceedings u/s. 270A of the Income Tax Act is also pending for the assessment year 2017-18.

Income Tax Department filed its report on 27.02.2023 for the petitioner company No. 1 & 2, and stated that following demands are pending for the petitioner company No. 1 & 2:

| Sl. No. | Name of the Assesee | PAN | Demand (In Rs.) | A.Y. |
|---|---|---|---|---|
| 1. | Ideal Textile Machinery Components Pvt. Ltd. | AAACI4238D | 13,793/- | 2006-07 |
| | | | 188/- | 2005-06 |
| | | | 1,653/- | 2009-10 |
| | | | 470/- | 2010-11 |
| | | | 10/- | 2021-22 |
| 2. | Ideal Stationery Mfging Co. Pvt. Ltd. | AAACI8127R | 430/- | 2009-10 |

7. The petitioner companies have filed a common affidavit in reply on 17.03.2023, to the observations of the Regional Director, RoC, and Official Liquidator The submission made in above stated reply is as follows:

   i) The petitioner companies undertake that all the liabilities, dues and obligations, if any arise in future including the income tax liabilities/obligations of all the Applicant Companies as on the appointed date which incur, arise or accrue after the appointed date, shall be borne by the Transferee Company by virtue of the scheme of amalgamation.

   ii) The petitioner companies undertake that all the liabilities, dues and obligations, tax if any which may arise in including future liabilities/obligations of the Applicant Companies, as on the appointed date, shall be discharged after the appointed date by

the Transferee Company and shall be satisfied by the Transferee Company, by virtue of the scheme of amalgamation.

iii) The arrangement is specified in the scheme of amalgamation under Part D point no. 1.4, which states as follows:

*"1.4. All the liabilities, debts, contingent liabilities, obligations and duties, whether secured or unsecured or whether provided for or not in the books of account or disclosed in the balance sheets of the Transferor Companies up to the Effective Date shall also stand transferred to and vested in the Transferee Company, with effect from the Amalgamation Appointed Date by operation of law pursuant to the vesting order of the NCLT sanctioning the Scheme and without any further act, instrument or deed by the Transferor Companies and/or the Transferee Company, so as to become as and from the Amalgamation Appointed Date, the liabilities, debts, contingent liabilities, obligations and duties of the Transferee Company. It shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, contingent liabilities, duties, and obligations have arisen in order to give effect to the provisions of this Clause. Further, all debts and loans raised and duties, liabilities and obligations incurred or which arise or accrue to a Transferor Company on or after the Amalgamation Appointed Date till the Effective Date, shall be deemed to have been raised, used or incurred for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall also*

*without any further act or deed be and stand transferred to and be deemed to be transferred to the Transferee Company and shall become the debts, loans raised, duties, liabilities and obligations incurred by the Transferee Company by virtue of this Scheme. Where any of the debts, liabilities, loans raised and used, liabilities and obligations incurred, duties and obligations of the Transferor Companies as on the Amalgamation Appointed Date deemed to be transferred to the Transferee Company have been discharged by the Transferor Company after the Amalgamation Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Transferee Company."*

8. As recorded in the daily order dated 21.03.2023, Learned Counsel Ms. Pankti Shah for the Income Tax Department states that on submission of the applicant transferee company that the outstanding Income Tax liability shall be paid by them as per law, the Department has no objection if the scheme of arrangement is approved.

9. As recorded in the daily order dated 11.04.2023, Mr. Liladhar Sharma, Asst. Director of Regional Director office states that they have already submitted response and they do not have any objection to the approval of the scheme. None appeared for the OL. However, report of OL has come on record and copy has been given to the petitioner. Learned Counsel for the petitioner states that there is no objection in the report of OL.

10. As per the order dated 24.04.2023, the Bench sought some clarification on following two points:

    (a) On perusal of records, it is found that the Petitioner Companies (Transferor Company NO. 1 & 2) failed to reply to the clarifications sought in "clause 7" of the report of the Official Liquidator. Similarly, the Regional Director in its report in 'clause (f)' also sought justification from the petitioner companies concerning the appointed date, which is significantly ante-dated beyond a year from the date of filing, which is required as per para 6(c) of MCA circular No. 09/2019 dated 21.08.2019. No justification/clarification has been given in the reply dated 17.03.2023 filed to response to the report of RD and OL.

    (b) The petitioner companies failed to annex the copy of the schedule of property/Assets.

11. In the compliance of order dated 24.04.2023, the Petitioner Companies filed an affidavit on 28.04.2023 and stated as under:

    a) With respect of explanation on point 7 of the OL report the petitioner companies stated that the company application for convening/dispensing the meeting of the shareholders and creditors was originally proposed to be filed within one year of the appointed date. However, owing to circumstances arising out of first and second deadly waves of COVID-19 pandemic and

also considering the lockdown imposed by the government, there was certain delay in compliance and filing of the said application before Hon'ble NCLT. However, after due consideration of all the commercial aspects, the commercial interest of all the Petitioner Companies and other terms of the scheme, the shareholders of the Petitioner Companies have approved the scheme and approved the Appointed Date of 01.04.2020. Further, all the three Petitioner Companies have carried out the business activities in line with the proposed appointed date. Thus, reversing the same would prejudice the interest of stakeholders of all the three Petitioner Companies. Further, it was stated that the Petitioner Companies are closely held companies and hence the proposed Appointed Date is not against the public interest and also as per the MCA General Circular No. 09/2019 dated 21/08/2019, the MCA has also clarified that the Appointed Date can be ante-dated provided it is not against public interest. Further, the Registrar of Companies or the Regional Director have also not raised such objections. Therefore, the Petitioner Companies requested to this Tribunal to consider the clarification and approve the Appointed Date as per the scheme.

b) It is submitted by the Petitioner Companies that there are no physical assets in the Transferor Company No. 1 and Transferor Company No. 2.

c) The Petitioner Companies submitted that schedule of assets of the Transferee Company, Transferor Company No. 1 and Transferor Company No. 2 are annexed with this affidavit.

d) The Petitioner Companies further submitted that in the scheme of amalgamation, the Petitioner Companies undertake that all the liabilities, dues and obligations including the Income Tax liabilities/obligations of all the Petitioner Companies as on the Appointed Date which incur, arise or accrue after the Appointed Date, shall be borne by the Transferee Company by virtue of the Scheme of Amalgamation.

12. Heard submissions and perused the documents placed on record. Considering the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objections given by the respective statutory authorities, it appears that the requirements of the provisions of sections 230 and 232 are satisfied by the petitioner companies. It seems that the proposed Composite Scheme of Arrangement/Amalgamation is bona fide and in the interest of the shareholders and creditors. Therefore, the petition is allowed and the Scheme annexed with the petition being Arrangement/Amalgamation

of Ideal Stationery Mfging Company Private Limited and Ideal Textile Machinery Components Private Limited with Ideal Sheet Stamping & Pressing Private Limited is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on all the petitioner companies and their shareholders, creditors, and all concerned under the scheme.

13. Notwithstanding the above, if any deficiency is found or, the violation committed qua any enactment, statutory rule, or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

14. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST, etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of Arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

15. **The Scheme is sanctioned with the following directions:**

**i.** The Composite Scheme of Arrangement/Amalgamation as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on all the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

**ii.** The transferor company No. 1 & 2 shall stand dissolved without winding up.

**iii.** All the properties mentioned in the schedule as **"Annexure B"**, right and powers of the transferor company No. 1 & 2 specified in the schedule hereto, and all the other properties, rights, and powers of the transferor company be transferred without any further act or deed to the transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the transferee company for all the estate and interest of the transferor company No. 1 & 2 therein but subject nevertheless to all charges now affecting the same, if any.

**iv.** Upon the Scheme becoming fully effective on the Effective Date, in consideration of the amalgamation and transfer and vesting of all assets and liabilities, duties, rights and obligations relating to the Transferor Companies in terms of Part D of the Scheme, the Transferee Company shall, issue and allot to the Shareholders of the Transferor Companies:

(a) 3.38 equity shares of the Transferee Company of face value INR 100 each credited as fully paid-up (the "New Equity Shares") of the

Transferee Company for every 1000 equity shares of face value INR 100 (Rupees One Hundred) held by the equity Shareholders in the Transferor Company 1, as on the Record Date of Amalgamation; and

(b) 448.75 New Equity Shares of the Transferee Company of face value INR 100 each credited as fully paid-up (the "New Equity Shares") of the Transferee Company for every 1000 equity shares of face value INR 100 (Rupees One Hundred) held by the equity Shareholders in the Transferor Company 2, as on the Record Date of Amalgamation.

The equity shares so issued and allotted, shall rank *pari passu* in all respects with the existing equity shares of the Transferee Company.

**v.** No shares shall be issued in respect of fractional entitlements, if any, by the Transferee Company, to which the Shareholders of the Transferor Companies may be entitled on issue and allotment of New Equity Shares of the Transferee Company.

**vi.** Each Shareholder of the Transferor Company shall receive the New Equity Shares of the Transferee Company in physical form, represented by duly stamped share certificates of the Transferee Company.

**vii.** The authorized share capitals of the Transferor Companies aggregating to Rs. 10,00,000, or such amount as may be on the Appointment Date, shall be added to and shall form part of the authorized share capital of the

Transferee Company. Accordingly, the authorized share capital of the Transferee Company shall stand increased to the extent without payment of any fees or charges to the Registrar of Companies. However, in the event of any charges becoming payable, the Transferee Company undertakes to pay the same to the statutory authorities.

Consequent upon the addition of the authorized capital of all the Transferor Companies to the authorized capital of the Transferee Company, Clause V of the Memorandum of Association of the Transferee Company shall be replaced as under -:

"The Authorised Share Capital of the Company is Rs. 20,00,000/- (Rs. Twenty Lacs Only) divided into 20,000 (Twenty Thousand) Equity Shares of Rs. 100/- each."

Under the accepted principle of Single Window Clearance, it is hereby provided that the above referred change, viz. Change in the Capital Clause shall become operative on the Scheme being effective by virtue of the fact that the Shareholders of the Transferee Company, while approving the scheme as a whole, have also resolved and accorded the relevant consents as required respectively under Sections 13, 42,61, 62, and /or 64 of the Companies Act, 2013 or any other provisions of the Act and shall not be required to pass separate resolutions as required under the Act.

**viii.** In respect of the shares of the Transferor Company No. 1 and Transferee Company held by the Transferor Company 2, pursuant the Scheme, no shares shall be issued to the Transferor Company No. 2 in respect of the

same and the current shareholding of the Transferor Company No. 2 in the Transferee company would be considered as NIL upon the Scheme being becoming effective on the Effective Date.

**ix.** All proceedings and litigation pending or to be initiated, by or against the transferor company No. 1 & 2 shall be continued by or against the transferee company.

**x.** All workers/employees of all the transferor company No. 1 & 2 shall be deemed to become the workers /employees of the transferee company with effect from the Appointed Date and shall stand absorbed in the transferee company in accordance with the Scheme without any interruption of service and on terms and conditions no less favourable than those on which they are engaged by the transferor company No. 1 & 2, as on the Effective Date.

**xi.** The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration, and on such certified copy being so delivered, the entire Undertaking of the transferor companies shall stand transferred to the transferee company and the Registrar of Companies shall place all documents relating to the transferor companies to the file kept by them in relation to the transferee company and the files relating to the said three companies shall be treated accordingly.

**xii.** All concerned Authorities to act on the copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue the certified copy of this order along with the Scheme immediately.

**xiii.** The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme along with Schedule of Assets of the transferor company No. 1 & 2 attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

**xiv.** The Petitioner Companies are further directed to file a copy of this order along with a copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to a physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

**xv.** The legal fees and expenses of the office of the Regional Director are quantified at Rs. 10,000/ in respect of the petitioner companies. The said fees to the Regional Director shall be paid by the transferee company.

**xvi.** The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of the petitioner transferor company No. 1 & 2. The said fees to the Official Liquidator shall be paid by the transferee company.

**xvii.** The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Department shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the Scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

**xviii.** Any person aggrieved by this Scheme shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

**xix.** The Petition is allowed and disposed of, in terms of the above order.

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| **-SD-** | **-SD-** |
| **AJAI DAS MEHROTRA** | **SHAMMI KHAN** |
| **MEMBER (TECHNICAL)** | **MEMBER (JUDICIAL)** |

Abhishek Singh-LRA
Swetambary-Steno

"ANNEXURE-F"

Annexure "A"

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**COMPOSITE SCHEME OF ARRANGEMENT / AMALGAMATION**

**(UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013)**

**BY & BETWEEN**

**Ideal Stationery Mfging Company Private Limited**

**("TRANSFEROR COMPANY 1")**

**AND**

**Ideal Textile Machinery Components Private Limited**

**("TRANSFEROR COMPANY 2")**

**WITH**

**Ideal Sheet Metal Stampings & Pressings Private Limited**

**("TRANSFEREE COMPANY")**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

DIRECTOR

For Ideal Textile Machinery Components Pvt. Ltd.

Director

## PREAMBLE

This Composite Scheme of Amalgamation (hereinafter referred to as "**Scheme**" or "**the Scheme**") is presented under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (hereinafter referred to as the "**Act**") read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, as amended from time to time, for amalgamation of **IDEAL STATIONERY MFGING COMPANY PRIVATE LIMITED** (hereinafter referred to as the "**Transferor Company 1**") and **IDEAL TEXTILE MACHINERY COMPONENTS PRIVATE LIMITED** (hereinafter referred to as the "**Transferor Company 2**", and collectively with Transferor Company 1, the "**Transferor Companies**" and individually as a "**Transferor Company**") with **IDEAL SHEET METAL STAMPINGS & PRESSINGS PRIVATE LIMITED** (hereinafter referred to as the "**Transferee Company**" and collectively with Transferor Companies, the "**Scheme Entities**" and individually as a "**Scheme Entity**").

Scheme is divided into the following parts:

(i) **Part A** – Description of the Scheme Entities;

(ii) **Part B** – Rationale of the Scheme;

(iii) **Part C** – Deals with definitions of the terms used in this Scheme and sets out the respective share capital of the Transferor Company and the Transferee Companies;

(iv) **Part D** – Deals with amalgamation of Transferor Companies with the Transferee Company; and

(v) **Part E** – Deals with the general terms and conditions applicable to this Scheme and other matters consequential and integrally connected thereto.

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD

DIRECTOR

For, Ideal Textile Machinery Components Pvt. Ltd.

Director

## PART A: DESCRIPTION OF THE SCHEME ENTITIES

### 1. TRANSFEROR COMPANY 1

1.1. The Transferor Company 1 was originally incorporated as Intellect Components Company Private Limited on 30 October 1974 under the provisions of the Companies Act, 1956. The name of Transferor Company 1 was changed to Ideal Stationery Mfging Company Private Limited pursuant to the consent of the Central Government given under letter dated 15 March 1989 bearing reference number 2609 and the fresh certificate of incorporation issued by the Registrar of Companies, Gujarat dated 16 March 1989.

1.2. Transferor Company 1's Corporate Identification Number is U29259GJ1974PTC002609. The PAN No. of the Transferor Company 1 is AAACI8127R. The registered office of Transferor Company 1 is situated at Plot No.94/2, G.I.D.C Industrial Estate, Phase-1, Vatva, Ahmedabad, Gujarat: 382445.

1.3. As on 31 March 2020, the authorized share capital of the Transferor Company 1 is INR 5,00,000 (Rupees five lakhs) divided into 5000 (five thousand) equity shares of face value INR 100 (Rupees one hundred) each.

1.4. As on 31 March 2020, the issued, subscribed and paid up share capital of Transferor Company 1 is INR 2,05,800 (Rupees two lakh five thousand eight hundred) divided into 2,058 (two thousand fifty eight) equity shares of face value INR 100 (Rupees one hundred) each.

1.5. As on the date of filing of this Scheme, there has been no change in the current authorized and paid up share capital of the Transferor Company 1.

1.6. The main objects mentioned in the memorandum of association of the Transferor Company 1 are as follows:

(1) To carry on the business of manufacturers of all kinds of components, spare parts and articles of all kinds of machinery and in particular spare parts, components and articles of machinery for textile industry and gins;

(2) To carry on the business of manufacturers, dealers in importers and exporters of all kinds of industrial components and spare parts;

(3) To carry on the business of manufacturers of, dealers in, importers and exporters of all kinds of machinery;

(4) To carry on the business of industrial engineers, mechanical engineers, electrical engineers, textile engineers, air-conditioning engineers, water supply engineers and all other kinds of engineering business;

(5) To act as industrial consultants, engineering consultants, business consultants and to carry on all types of consultancy business connected with industry and trade;

(6) To manufacture, buy, sell, import, export manipulate, assemble, treat, prepare and deal industrial machines and machineries and industrial plants of all kinds and other implements and machine tools of all types;

(7) To manufacture, buy, sell, import, export, manipulate, assemble, treat, prepare and deal in textile machinery, sugar mill machinery, printing machinery, paper mill machinery and all kinds of chemical plants, agricultural machinery and equipments and other implements, electric machinery and plant and implements, their accessories appliances and parts;

(8) To carry on the business of iron founders brass founders, metal workers, iron and steel convertors, smiths, wood workers, metallurgists, machinists, mill wrights, wire drawers, tube makers, engineers and repairers of all kinds of machinery and apparatus contractors, moulders, fitters, galvanisers,

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FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

For, Ideal Textile Machinery Components Pvt. Ltd.

DIRECTOR

Director

electroplaters and enamellers and to repaid recondition any type of machinery, machine tools implements and engines;

(9) To buy, sell, repair, convert, alter, export, import, let on hire and deal in machinery, implements and hardware of all kinds;

(10) To carry on job work of conversion of system from tin Rollers to drive pully with or without materials either on a contract basis or otherwise and to do all such acts and things incidental there too and to accept other job work of the similar nature.

**2. TRANSFEROR COMPANY 2**

2.1. The Transferor Company 2 was incorporated under the provisions of the Companies Act, 1956 pursuant to the certificate of incorporation dated 16 June 1972 issued by the Registrar of Companies.

2.2. Transferor Company 2's Corporate Identification Number is U29259GJ1972PTC002108. The PAN No. of the Transferor Company 2 is AAACI4238D. The registered office of Transferor Company 1 is situated at Plot No.94/2, G.I.D.C Industrial Estate, Phase-1, Vatva, Ahmedabad, Gujarat: 382445.

2.3. As on 31 March 2020, the authorized share capital of the Transferor Company 2 is INR 5,00,000 (Rupees five lakhs) divided into 5000 (five thousand) equity shares of face value INR 100 (Rupees one hundred) each.

2.4. As on 31 March 2020, the issued, subscribed and paid up share capital of Transferor Company 2 is INR 4,20,600 (Rupees four lakh twenty thousand six hundred) divided into 4,206 (four thousand two hundred and six) equity shares of face value INR 100 (Rupees one hundred) each.

2.5. As on the date of filing of this Scheme, there has been no change in the current authorized and paid-up share capital of the Transferor Company 2.

2.6. The main objects mentioned in the memorandum of association of the Transferor Company 2 are as follows:

(1) To carry on the business of manufacturers of all kinds of components, spare parts and articles of all kinds of machinery and in particular spare parts, components and articles of machinery for textile industry and gins;

(2) To carry on the business of manufacturers, dealers in importers and exporters of all kinds of industrial components and spare parts;

(3) To carry on the business of manufacturers of, dealers in, importers and exporters of all kinds of machinery;

(4) To carry on the business of industrial engineers, mechanical engineers, electrical engineers, textile engineers, air-conditioning engineers, water supply engineers and all other kinds of engineering business;

(5) To act as industrial consultants, engineering consultants, business consultants and to carry on all types of consultancy business connected with industry and trade;

(6) To manufacture, buy, sell, import, export, manipulate, assemble, treat, prepare and deal industrial machines and machineries and industrial plants of all kinds and other implements and machine tools of all types;

(7) To manufacture, buy, sell, import, export, manipulate, assemble, treat, prepare and deal in textile machinery, sugar mill machinery, printing machinery, paper mill machinery and all kinds of chemical plants, agricultural machinery, and equipments and other implements, electric machinery and plant and implements, their accessories appliances and parts;

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

For, Ideal Textile Machinery Components Pvt. Ltd.

DIRECTOR

(8) To carry on the business of iron founders, brass founders, metal workers, iron and steel convertors, smiths, wood workers, metallurgists, machinists, mill wrights, wire drawers, tube makers, engineers and repairers of all kinds of machinery and apparatus, contractors, moulders, fitters, galvanisers, electroplaters and enamellers, and to repair and recondition any type of machinery, machine tools, implements and engines; and

(9) To buy, sell, repair, convert, alter, export, import, let on hire and deal in machinery, implements and hardware of all kinds.

## 3. TRANSFEREE COMPANY

3.1. The Transferee Company was incorporated under the provisions of the Companies Act, 1956 pursuant to the certificate of incorporation dated 13 September 1962 issued by the Registrar of Companies.

3.2. Transferee Company's Corporate Identification Number is U28999GJ1962PTC001157. The PAN No. of the Transferee Company is AAACI3670D. The registered office of Transferee Company is situated at Plot No.94/2, G.I.D.C Industrial Estate, Phase-1, Vatva, Ahmedabad, Gujarat: 382445.

3.3. As on 31 March 2020, the authorized share capital of the Transferee Company is INR 10,00,000 (Rupees ten lakhs) divided into 10,000 (ten thousand) equity shares of face value INR 100 (Rupees one hundred) each.

3.4. As on 31 March 2020, the issued, subscribed and paid-up share capital of Transferee Company is INR 9,66,000 (Rupees nine lakh sixty-six thousand) divided into 9,660 (nine thousand six hundred and sixty) equity shares of face value INR 100 (Rupees one hundred) each.

3.5. As on the date of filing of this Scheme, there has been no change in the current authorized and paid-up share capital of the Transferee Company.

3.6. The objects mentioned in the memorandum of association of the Transferee Company include the following:

(1) To carry on business of Importers, Exporters, manufacturers of and dealers in and suppliers and commission agents of all kinds of Machinery, i.e. Mechanical, Electrical, Textile, run by any kinds of power or by hand and their parts - and components parts of machinery, accessories and stores for all kinds of machinery mentioned above, as wells as for Mills. Gins and all kinds of Factories. Also to carry on business of Importing. Exporting Manufacturing and dealing in all kinds of Chemicals. Dyes, Medicines, Ores Iron and Metals: Leathers and articles made from Leathers, Rubber and articles made from Rubber, Cement, Stones, Marbles, Precious stones, Pearls curios, and all other kinds of general merchandise and sundries such as glass and glass-ware, earthen-ware, toys instruments, papers, tools etc. and to carry on business of General Importers, Exporters and Manufacturers and any other business decided upon by the Directors;

(2) To carry on business as of manufactures and. dealers in Textile Machinery spare parts for textile machinery, articles and substances usually required for cotton and woolen mills stores for Gins and Mills, Railways or any other kinds of factories or engines, dynamos, motors pumps, fans and their respective requisites, hot air fans pump and hot air machinery etc. and all appliances, accessories and requisites pertaining to the above and to work and maintain the same;

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

For, Ideal Textile Ind. Pvt. Ltd.
Component Mfg. Co.

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

DIRECTOR

(3) To carry on any other trade or business, whether manufacturing or otherwise, which may seem to the Company capable of being carried on in connection with any of the Company's objects or calculated directly or, indirectly to enhance the value of or render profitable any of the Company's property or rights;

(4) To carry on all or any of the business of Engineers, Iron, brass, and other metal founders, machinists, tool makers, wire drawers, tube, pipe and take manufacturers, metallurgists and metal workers, fitters, mill rights, galvanisers, japaners, electroplaters, enamollers;

(5) To secure any foreign and/or local agencies of all kinds of machinery, starches textile products and other articles and to obtain the grant of any commission, contracts, rights, patents, privileges, monopolies and to perform and fulfill the terms and conditions, and to carry on the same in effect, operate, develop, and turn to account, sell, dispose of and deal with the same;

(6) To let out on hire all or any of the property of the Company whether immoveable or moveable including all and every descriptions of apparatus or appliances: and to hold, use cultivate, work, manage, improve, carry-on and develop the undertakings, lands and immoveable property and assets of any kind of the Company as any part thereof;

(7) To purchase or by any other means acquire and protect prolong and renew, whether in India or elsewhere, any patents, patent rights, brevets d'invention, licenses protections and concession which may appear likely to be advantageous or concession which may appear likely to be advantageous or useful to the Company, and to use turn to account and manufacture or grant licenses or privileges in respect of the same and to spend money in experimenting upon and testing and improving or seeking to improve any patent; inventions or rights which the Company may acquire or propose to acquire;

(8) To act as Agents or Representatives Corporations, Firms and Individuals and Managing Agents for Companies and generally to undertake, transact and execute all kinds of Agency and Brokerage business of all kinds;

(9) To erect, construct, lay down, enlarge, alter or maintain any buildings' works or machineries necessary and convenient for the company's business and to purchase, lease or otherwise acquire any lands, works, undertakings or other properties or any option or right in relation thereof and to work and operate develop and turn to account to sell dispose of and deal with the same;

(10) To acquire by subscription, purchase or otherwise and to accept and take, hold or sell shares or stock in any Company or undertaking, the objects of which shall either in whole or part be similar to those of this Company, or such as may be likely to promote or advance the interests the Company;

(11) To invest in and acquire and hold shares and stocks, debentures, debenture stock, bonds, loans, and securities issued or guaranteed by any Government, local or incorporated body, whether in India or any foreign country;

(12) To enter into any arrangement for sharing profits, union of interests, co-operation amalgamation joint adventure reciprocal concession or otherwise, with any person, firm or Company carrying on or engaged in, or about to carry on, or engage in any business or transaction which the Company is authorised to carry on or engage in, or any business or transaction capable of being conducted so as directly or indirectly to benefit the Company;

For, Ideal Textile Machinery Components Pvt. Ltd.

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

DIRECTOR

(13) To acquire by purchase, amalgamation, grant concession, lease licenses barter, or otherwise either absolutely or conditionally and either solely or jointly with others in real or personal, immoveable or moveable property, rights or privileges including and land, building, rights of way, easement, licenses concessions, and privileges, patents, patent rights, trade marks, machinery, stocks, plants, utensils, accessories and stock-in-trade.

## PART B: RATIONALE OF THE SCHEME

*[Note: Set out below is a generic / placeholder rationale, companies to update based on commercial reasons.]*

The Board of Directors of the Transferor Companies and the Board of Directors of the Transferee Company are of the opinion that the arrangement under the Scheme would benefit the members, creditors and employees of each of the companies aforesaid and will not be detrimental to public interest. Further, the proposed arrangement would inter alia achieve the following objectives:

1. Amalgamation will help to eliminate layer of the investment Companies (Investment Layer) of the promoters in the Transferor Companies.
2. The proposed amalgamation will create enhanced value for shareholders and allow a focused strategy in operations, which would be in the best interest of all its shareholders, creditors and all persons connected with all the companies.
3. Amalgamation will help to reduce the cost of maintenance of the transferor Companies as under: -

1.1. Enhanced management focus and operational flexibility;

1.2. The amalgamation will facilitate consolidation of the businesses of the Transferor Companies and the Transferee Company into a single corporate organization;

1.3. The amalgamation of the Transferor Companies into the Transferee Company would create synergies of operations besides economies in administrative and managerial costs by combining operations and would result in improved performance for the Transferee Company's and would enhance the Shareholders' value; and

1.4. Elimination of overlapping administrative functions and multiple record-keeping, thus resulting in reduced expenditure.

## PART C: DEFINITIONS AND SHARE CAPITAL

### 1. DEFINITIONS

In this Scheme, unless repugnant to the context, the following expressions shall have the following meaning:

1.1. "**Act**" shall mean the Companies Act, 2013 (Act No. 18 of 2013), and the rules, regulations, circulars and notifications issued thereunder, each as amended from time to time and to the extent in force.

1.2. "**Appropriate Authority**" means any governmental, statutory, regulatory, departmental or public body or authority of relevant jurisdiction, including registrar of companies, National Company Law Tribunal and courts of India;

1.3. "**Amalgamation Appointed Date**" means the start of business as on [1 April 2020].

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For, Ideal Textile Machines Components Pvt. Ltd.

For, IDEAL STAMPING MFG. CO. PVT. LTD.

DIRECTOR

Director

1.4. "**Board of Directors**" or "**Board**" means the board of directors of a Scheme Entity, and shall include a duly constituted committee thereof or any person authorized by the board of directors or by any such committee.

1.5. "**Effective Date**" means the date on which the last of the conditions set out in Clause 1 of Part E of the Scheme is satisfied.

1.6. "**Encumbrances**" shall mean (a) any mortgage, charge (whether fixed or floating) pledge, lien, hypothecation, assignment, deed or trust, title retention, security interest or other encumbrances or interest of any kind securing or conferring any priority of payment in respect of any person, including without limitation any right granted by a transaction, which in legal terms, is not the granting of security but which has economic and financial effect similar to the granting of security under applicable law; (b) proxy, any voting agreement, interest, option, right of first offer, refusal or transfer restriction in favour of any person, or any other preferential arrangement having a similar effect, of any kind or nature, whether arising by agreement, by statute or otherwise; (c) any adverse claim as to title, possession or use; and (d) a contract to give or refrain from giving any of the foregoing.

1.7. "**Government Authority**" means applicable centre, state or local government (including Municipality, Municipal Corporation) statutory legislative, regulatory or administrative authority, agency or commission or any court, tribunal, board, bureau or instrumentality thereof or arbitral body having jurisdiction, exercising powers conferred by law applicable in India.

1.8. "**Income Tax Act**" means the Income Tax Act, 1961 and rules framed thereunder, including any statutory modification, re-enactment or amendment thereto for the time being enforced.

1.9. "**National Company Law Tribunal**" or "**NCLT**" means the Hon'ble bench of National Company Law Tribunal at [Ahmedabad, Gujarat] and shall be deemed to include, if applicable, a reference to such other form or authority which may be vested with any of the powers of a National Company Law Tribunal to sanction this Scheme under the Act.

1.10. "**Record Date of Amalgamation**" shall mean the date to be fixed by the Board of Directors of the Transferee Company for determining the members of the Transferor Companies to whom the shares of the Transferee Company will be allotted pursuant to Part D of this Scheme.

1.11. "**Shareholders**", with respect to a Scheme Entity means, the persons registered from time to time, as the holders of the equity shares of the relevant Scheme Entity.

1.12. "**Scheme**" means this Scheme of Amalgamation in its present form approved by the Board of Directors of the Scheme Entities, subject to such modification(s) approved or directed by the National Company Law Tribunal.

1.13. "**Transferee Company**" means Ideal Sheet Metal Stampings & Pressings Private Limited, a company incorporated under the provisions of Companies Act, 1956 having its registered office at Plot No.94/2, G.I.D.C Industrial Estate, Phase-1, Vatva, Ahmedabad-382445, Gujarat, India.

1.14. "**Transferor Company 1**" means Ideal Stationery Mfging Company Private Limited, a company incorporated under the provisions of Companies Act, 1956 having its registered office at Plot No.94/2, G.I.D.C Industrial Estate, Phase-1, Vatva, Ahmedabad-382445, Gujarat, India.

1.15. "**Transferor Company 2**" means Ideal Textile Machinery Components Private Limited, a company incorporated under the provisions of Companies Act, 1956 having its registered office at Plot No.94/2, G.I.D.C Industrial Estate, Phase-1, Vatva, Ahmedabad-382445, Gujarat, India.

1.16. "**Undertaking**" with respect to each of the Transferor Companies means the entire undertaking of a Transferor Company as on the Amalgamation Appointed Date, and including:

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

For, Ideal Textile Machinery Components Pvt. Ltd.



DIRECTOR

Director

(i) the entire business of a Transferor Company as on the Amalgamation Appointed Date;

(ii) all assets, whether moveable or immoveable, whether leasehold or freehold, wherever located (including in the possession of vendors, third parties or elsewhere), whether real, personal or mixed, tangible, intangible, present, future or contingent, including but not limited to immovable properties, land and buildings, movable assets and other plant, machinery and equipment (if any), whether licensed, leased or otherwise held, title, interests, financial assets, investments, loans, application monies, advance monies, earnest monies (if any) and/or security deposits or advances (if any) (including accrued interest) and other payments (in any such case whether paid by or deemed to have been paid by the Transferor Company), covenants, undertakings and all rights and benefits, including all rights and benefits pertaining to any investments, loans and advances, including accrued interest thereon, all advance payments, earnest monies and/or security deposits, payment against warrants, if any, security arrangements, receivables, claims against any third parties, guarantees (including bank and performance guarantees), letters of credit, reversions, tenancies and other such arrangements or facilities (if any);

(iii) all debts, borrowings, duties, guarantees, assurances and liabilities (if any) (including deferred tax liabilities and contingent liabilities) of Transferor Company on the Amalgamation Appointed Date, both present and future of every kind, nature or description, whether fixed, contingent or absolute, secured or unsecured, asserted or unasserted, matured or unmatured, liquidated or unliquidated, accrued or not accrued, known or unknown, due or to become due, whenever or however arising, whether provided for or not in the books of accounts or disclosed in the balance sheet including, without limitation, whether arising out of any contract or tort based on negligence or strict liability or under any licenses or permits or schemes;

(iv) all the valid contracts, agreements, engagements, licenses, leases, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, letters of agreed points, arrangements, undertakings, whether written or otherwise, deeds, bonds, schemes, privileges and benefits of all contracts, agreements , tenders, bids, experience and/or performance statements and all other rights, including license rights, lease rights, powers and facilities of every kind and description whatsoever or other understandings, deeds and instruments of whatsoever nature to which the Transferor Company is a party on the Amalgamation Appointed Date, including agreements with any government entity, department, commission, board, agency, bureau, official, etc., sale agreements, agreements to sell, equipment purchase agreements, hire purchase agreements, lending agreements and other agreements with the customers, sales orders, purchase orders and other agreements and contracts with the supplier of goods or service providers (if any) and all rights, title, interests, claims and benefits there under of whatsoever nature to which the Transferor Company is a party on the Amalgamation Appointed Date;

(v) all intellectual property rights, registrations, trademarks, trade names, service marks, copyrights, patents, designs, technical know-how, domain names, including applications for trademarks, trade names, service marks, copyrights, designs and domain names, used by or held for use by the Transferor Company (if any) on the Amalgamation Appointed Date, whether or not recorded in the books of accounts of the Transferor Company, and other intellectual property rights of any nature whatsoever, books, records, files, papers, engineering and process information, software licenses (whether proprietary or otherwise), drawings, computer programs, manuals, data, catalogues, quotations, list of present and former customers and suppliers, other customer information, customer credit information, customer pricing information and all other records and documents (if any), whether in physical or electronic form relating to the business activities and operations of Transferor Company on the Amalgamation Appointed Date, whether used or held for use by it;

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FOR, IDEAL STATIONERY MFG. CO. PVT. LTD. For Ideal Textile Machinery Components Pvt. Ltd.



DIRECTOR

(vi) all permits, licenses, consents, approvals, authorizations, quotas, rights, entitlements, allotments, concessions, exemptions, liberties, advantages, subsidies, grants, allotments, recommendations, clearances, tenancies, offices, taxes, tax deferrals, benefits and credits (including, but not limited to credits and benefits in respect of foreign trade policy, fiscal benefits, tax deducted at source, turnover tax, excise duty, minimum alternate tax credit, customs duty, sales tax, value added tax and service tax), income tax benefits (including carry forward tax losses comprising of unabsorbed depreciation) and exemptions (including the right to claim tax holiday under the Income Tax Act), no-objection certificates, certifications, easements, tenancies, privileges and similar rights, whether statutory or otherwise, and any waiver of the foregoing, issued by any legislative, executive or judicial unit of any governmental or semi-governmental entity or any department, commission, board, agency, bureau, official or other regulatory, administrative or judicial authority used or held for use by Transferor Company on the Amalgamation Appointed Date;

(vii) any and all permanent employees, who are on the payrolls of a Transferor Company on the Amalgamation Appointed Date, employees / personnel engaged on contract basis and contract labourers and interns / trainees, engaged by the Transferor Company on the Amalgamation Appointed Date, at its respective offices, branches or otherwise, and any other employees / personnel and contract labourers and interns / trainees hired by a Transferor Company after the date hereof;

(viii) all legal, tax, regulatory, quasi-judicial, administrative proceedings, suits, appeal, applications or other proceedings of whatsoever nature initiated by or against a Transferor Company on the Amalgamation Appointed Date; and

(ix) all books, records, papers, files, computer programs, engineering and process information, manuals, data, production methodologies, production plans, designs, catalogues, quotations, websites, cloud storage, sales and advertising material, marketing strategies, list of present and former customers, customer credit information, customer pricing information, and other records, whether in physical or electronic form, directly or indirectly relating to a Transferor Company.

## 2. INTERPRETATION

2.1. All terms and words not defined in this Scheme shall, unless repugnant to the context or meaning thereof have the same meaning prescribed to them under the Act and other applicable laws, rules, regulations, bye-laws as the case may be or any statutory modification or re-enactment thereof from time to time.

2.2. In this Scheme, unless the context otherwise requires:

(a) references to "persons" shall include individuals, bodies corporate (wherever incorporated), unincorporated associations and partnerships;

(b) the headings are inserted for ease of reference only and shall not affect the construction or interpretation of the relevant provisions of this Scheme;

(c) any phrase introduced by the terms "including", "include" or any similar expression shall be construed without limitation;

(d) references to one gender includes all genders; and

(e) words in the singular shall include the plural and vice versa.

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

DIRECTOR

For, Ideal Textile Machinery Components Pvt. Ltd.

Director

## 3. DETAILS OF SHARE CAPITAL OF THE TRANSFEROR COMPANIES AND THE TRANSFEREE COMPANY, AS ON THE DATE OF THIS SCHEME

### 3.1. TRANSFEROR COMPANY 1:

#### 3.1.1. SHARE CAPITAL:

| Particulars | Amount (INR) |
|---|---|
| | |
| **Authorised Share Capital (As on 31st March, 2020)** | |
| 5000 (five thousand) equity shares of face value of INR 100 (Rupees one hundred) each | 5,00,000 |
| **TOTAL** | **5,00,000** |
| | |
| **Issued, subscribed and paid-up capital** | |
| 2,058 (two thousand fifty-eight) equity shares of face value INR 100 (Rupees one hundred) each | 2,05,800 |
| **TOTAL** | **2,05,800** |

3.1.2. **Shareholding pattern**: As on 31st March, 2020, the shareholding pattern of Transferor Company 1 is as follows:

| S. No. | Name of shareholder | Number of equity shares held | Percentage shareholding |
|---|---|---|---|
| 1. | Subhadraben Shah | 652 | 31.68 |
| 2. | Ideal Textile Machinery Components Pvt Ltd | 200 | 9.72 |
| 3. | Rajiben Shah | 678 | 32.94 |
| 4. | Khushiben Shah | 528 | 25.66 |
| | **Total** | **2,058** | **100** |

As on 31st March, 2021, the shareholding pattern of Transferor Company 1 is as follows:

| S. No. | Name of shareholder | Number of equity shares held | Percentage shareholding |
|---|---|---|---|
| 1. | Rajiben Shah | 1004 | 48.79 |
| 2. | Khushiben Shah | 854 | 41.50 |
| 3. | Ideal Textile Machinery Components Pvt Ltd | 200 | 9.72 |
| | **Total** | **2,058** | **100** |

### 3.2. TRANSFEROR COMPANY 2:

#### 3.2.1. SHARE CAPITAL

| Particulars | Amount (INR) |
|---|---|
| | |
| **Authorised Share Capital (As on 31st March, 2020)** | |
| 5000 (five thousand) equity shares of face value of INR 100 (Rupees one hundred) each | 5,00,000 |
| **TOTAL** | **5,00,000** |
| | |
| **Issued, subscribed and paid-up capital** | |
| 4,206 (four thousand two hundred and six) equity shares of face value INR 100 (Rupees one hundred) each | 4,20,600 |
| **TOTAL** | **4,20,600** |

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.
DIRECTOR
For Ideal Textile Machinery Components Pvt. Ltd.
Director
Authorised

3.2.2. **Shareholding pattern**: As on 31st March, 2020, the shareholding pattern of Transferor Company 2 is as follows:

| S. No. | Name of shareholder | Number of equity shares held | Percentage shareholding |
|---|---|---|---|
| 1. | Subhadraben Shah | 2700 | 64 |
| 2. | Rajiben Shah | 753 | 18 |
| 3. | Khushiben Shah | 753 | 18 |
| | **Total** | **4,206** | **100** |

As on 31st March, 2021, the shareholding pattern of Transferor Company 2 is as follows:

| S. No. | Name of shareholder | Number of equity shares held | Percentage shareholding |
|---|---|---|---|
| 1. | Rajiben Shah | 2103 | 50 |
| 2. | Khushiben Shah | 2103 | 50 |
| | **Total** | **4,206** | **100** |

3.3. **TRANSFEREE COMPANY:**

3.3.1. **SHARE CAPITAL**

| Particulars | Amount (INR) |
|---|---|
| | |
| **Authorised Share Capital (As on 31st March, 2020)** | |
| 10,000 (Ten thousand) equity shares of face value of INR 100 (Rupees one hundred) each | 10,00,000 |
| **TOTAL** | **10,00,000** |
| | |
| **Issued, subscribed and paid-up capital** | |
| 9,660 (nine thousand six hundred and sixty) equity shares of face value INR 100 (Rupees one hundred) each. | 9,66,000 |
| **TOTAL** | **9,66,000** |

3.3.2. **Shareholding pattern**: As on 31st March, 2020, the shareholding pattern of Transferor Company 2 is as follows:

| S. No. | Name of shareholder | Number of equity shares held | Percentage shareholding |
|---|---|---|---|
| 1. | Subhadraben Shah | 6133 | 63.49 |
| 2. | Ideal Textile Machinery Components Private Limited | 1805 | 18.69 |
| 3. | Rajiben Shah | 861 | 8.91 |
| 4. | Khushiben Shah | 861 | 8.91 |
| | **Total** | **9,660** | **100** |

As on 31 March, 2021, the shareholding pattern of Transferor Company 2 is as follows:

| S. No. | Name of shareholder | Number of equity shares held | Percentage shareholding |
|---|---|---|---|
| 1. | Ideal Textile Machinery Components Private Limited | 1805 | 18.68 |
| 2. | Rajiben Shah | 3927 | 40.65 |
| 3. | Khushiben Shah | 3928 | 40.66 |
| | **Total** | **9,660** | **100** |

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

For, Ideal Textile Machinery Components Pvt. Ltd.

DIRECTOR

Director

## 4. GENERAL DISCLOSURES

### 4.1. TRANSFEROR COMPANY 1

4.1.1. Transferor Company 1 had earnings before interest, tax, depreciation and amortisation ("**EBITDA**") of INR 8,357 (Rupees Eight Thousand Three Hundred Fifty-Seven Only) and had a turnover of INR 24,426 (Rupees Twenty-Four Thousand Four Hundred Twenty-Six Only) (includes other income as well) during the financial year ended [31 March, 2020].

4.1.2. There was no qualification, reservation or adverse remark or disclaimer made by the auditors in their audit report obtained for the financial year ended 31 March, 2020 of Transferor Company 1.

4.1.3. There is no investigation pending against the Transferor Company 1 under section 210 to 212 of the Act.

4.1.4. The shares of the Transferor Company 1 are not listed on any stock exchange.

### 4.2. TRANSFEROR COMPANY 2

4.2.1. Transferor Company 2 had an EBITDA of INR 2,74,895 (Rupees Two Lakhs Seventy-Four Thousand Eight Hundred Ninety-Five Only) and had a turnover of INR 2,89,788 (Rupees Two Lakhs Eighty-Nine Thousand Seven Hundred Eighty-Eight Only) (includes other income as well) during the financial year ended 31 March, 2020.

4.2.2. There was no qualification, reservation or adverse remark or disclaimer made by the auditors in their audit report obtained for the financial year ended 31 March, 2020 of Transferor Company 2.

4.2.3. There is no investigation pending against the Transferor Company 2 under section 210 to 212 of the Act.

4.2.4. The shares of the Transferor Company 2 are not listed on any stock exchange.

### 4.3. TRANSFEREE COMPANY

4.3.1. Transferee Company had an EBITDA of INR 1,35,31,095 (Rupees One Crore Thirty-Five Lakhs Thirty-One Thousand Ninety-Five Only) and had a turnover of INR 36,78,93,894 (Rupees Thirty-Six Crores Seventy-Eight Lakhs Ninety-Three Thousand Eight Hundred Ninety-Four Only) (includes other income as well) during the financial year ended 31 March, 2020.

4.3.2. There was no qualification, reservation or adverse remark or disclaimer made by the auditors in their audit report obtained for the financial year ended 31 March, 2020 of Transferee Company.

4.3.3. There is no investigation pending against the Transferee Company under section 210 to 212 of the Act.

4.3.4. The shares of the Transferee Company are not listed on any stock exchange.

## PART D: MERGER AND AMALGAMATION OF THE TRANSFEROR COMPANIES INTO THE TRANSFEREE COMPANY

### 1. TRANSFER AND VESTING OF THE UNDERTAKING OF THE TRANSFEROR COMPANIES INTO THE TRANSFEREE COMPANY

1.1. On coming into the effect of the Scheme and after giving effect to Part E of the Scheme and with effect from the Amalgamation Appointed Date, the entire Undertaking of the Transferor Companies together with all their assets, properties, liabilities, rights,

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.
DIRECTOR

For, Ideal Textile Machinery Components Pvt. Ltd.
Director

benefits and interest therein subject to existing charges, if any, thereon shall without any further deed, act, matter or thing stand transferred to and vested with the Transferee Company pursuant to Sections 230 to 232 and other applicable provisions of the Act, on a going concern basis and on a share exchange ratio set out hereinafter in the Scheme, so as to become as and from the Amalgamation Appointed Date, the Undertaking(s) properties and liabilities of the Transferee Company by virtue of and in the manner provided in the Scheme.

1.2. The transfer of the Undertakings of the Transferor Companies under the Scheme is in compliance with the Income Tax Act and other statutory provisions. If any of the terms of the Scheme are inconsistent with the provisions of any of the statutory provisions of any statutes or legislations, the provisions of the said statutes or legislations to the extent of the inconsistency shall prevail and the Scheme shall, stand and be deemed to be modified to the extent to comply with the said provisions and such modifications shall not affect the other parts of the Scheme.

1.3. All the assets moveable and immoveable, moveable and immovable properties (including land together with the buildings and structures standing thereon and rights and interest in the immovable properties of the Transferor Companies, whether freehold or leasehold, including any right to use, or licenses or otherwise), documents of title, easements, investments in shares and any other securities, sundry debtors, outstanding loans and advances, bank balances, rights, interests and claims whatsoever of the Transferor Company and its entire Undertaking (authorities, privileges, licenses and rights in respect of moveable properties, immovable properties including lease hold, tenancies, trademarks, fittings and fixtures, power connections, telephones, telex, fax, cash balances, reserves, securities, deposits, refunds, outstanding balances, stocks, investments, licenses including all the benefits and entitlements up to the Effective Date, accrued or earned goodwill and other rights and interests of all descriptions in or arising out of such properties as may belong to or be in possession of the Transferor Companies and all books and accounts, and documents and records relating thereto) shall, by operation of law pursuant to the vesting order of the NCLT sanctioning the Scheme and without any further act, instrument or deed by the Transferor Companies and/or the Transferee Company, be transferred to and be vested in the Transferee Company with effect from the Amalgamation Appointed Date, so as to become as and from the Amalgamation Appointed Date, the assets, properties, rights, interests and claims of the Transferee Company but subject nevertheless to all charges then affecting the same.

1.4. All the liabilities, debts, contingent liabilities, obligations and duties, whether secured or unsecured or whether provided for or not in the books of account or disclosed in the balance sheets of the Transferor Companies up to the Effective Date shall also stand transferred to and vested in the Transferee Company, with effect from the Amalgamation Appointed Date by operation of law pursuant to the vesting order of the NCLT sanctioning the Scheme and without any further act, instrument or deed by the Transferor Companies and/or the Transferee Company, so as to become as and from the Amalgamation Appointed Date, the liabilities, debts, contingent liabilities, obligations and duties of the Transferee Company. It shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, contingent liabilities, duties and obligations have arisen in order to give effect to the provisions of this Clause. Further, all debts and loans raised and duties, liabilities and obligations incurred or which arise or accrue to a Transferor Company on or after the Amalgamation Appointed Date till the Effective Date, shall be deemed to have been raised, used or incurred for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date, shall also without any further act or deed be and stand transferred to and be deemed to be transferred to the Transferee Company and shall become the debts, loans raised, duties, liabilities and obligations incurred by the Transferee Company by virtue of this Scheme. Where any of the debts, liabilities, loans raised and used, liabilities and obligations incurred, duties and obligations of the Transferor Companies as on the Amalgamation Appointed Date deemed to be transferred to the Transferee Company have been discharged by the Transferor Company after the Amalgamation Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Transferee Company.

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DIRECTOR

Director

1.5. All long term, medium-term, short-term loans and other loans, secured and unsecured, undertaken by the Transferor Companies from banks, financial institutions and any other persons up to the Effective Date, shall stand transferred and become the liabilities of the Transferee Company and shall be discharged by the Transferee Company, in the same manner and on the same terms and conditions as applicable to the Transferor Companies. Upon the Scheme being sanctioned by the National Company Law Tribunal and upon a copy of the Scheme being filed with the Registrar of Companies, Gujarat all charges, Encumbrances created by the Transferor Companies in favor of banks, financial institutions and any other persons shall stand transferred, as if the same were created by the Transferee Company.

1.6. All the licenses, permits, quotas, contracts, letters of intent, memoranda of understanding, deeds, bonds, agreements, schemes, arrangements, approvals, permissions, certificates, registrations, incentives, tax deferrals and benefits, subsidies, concessions, entitlements, clearances, grants, rights, claims, leases, tenancy rights, liberties, special status, licenses including those related to intellectual property rights of any nature whatsoever, including any and all registrations, goodwill, licenses, trademarks, know-how, technical know-how, trade names, descriptions, trading styles, franchise, labels, label designs, colour schemes, utility models, holograms, bar codes, designs, patents, copyrights, tenancies, privileges and any rights, titles or interest, facilities of every kind of description of whatsoever nature, and other benefits and privileges enjoyed or confirmed or held or availed of by the Transferor Companies and all rights and benefits that have accrued or which may accrue to the Transferor Companies whether before or after the Amalgamation Appointed Date, shall, by operation of law pursuant to the vesting order of the NCLT sanctioning the Scheme and without any further act, instrument or deed by the Transferor Companies and/or the Transferee Company, be and hereby stand transferred to and vested in or be deemed to be transferred to and vested in and be available to the Transferee Company so as to become as and from the Amalgamation Appointed Date, licenses, permits, quotas, contracts (together with all non-compete covenants) approvals, permissions, registrations, incentives, tax deferrals and benefits , subsidies, concessions, grants, rights, claims, leases, tenancy rights, liberties, special status, licenses including those related to trademarks, know-how, technical knowhow, trade names, descriptions, trading styles, franchise, labels, label designs, colour schemes, utility models, holograms, bar codes, designs, patents, copyrights, tenancies, privileges and any rights, titles or interest in Intellectual property rights, powers, facilities of every kind of description of whatsoever nature and other benefits or privileges of the Transferor Companies and shall remain valid, effective and enforceable on the same terms and condition and shall be appropriately registered by relevant statutory authorities in favour of the Transferee Company pursuant to this Scheme in order to facilitate the continuation of operations of the Transferor Company in the Transferee Company without any hindrances, on the Amalgamation Appointed Date.

Without prejudice to the generality of the foregoing, all deeds, bank guarantees, performance guarantees and letters of credit, agreements / licenses with any government entity, department, commission, board, agency, bureau or official, hire purchase agreements, lending agreements and such other agreements, deeds, documents and arrangements pertaining to the businesses and Undertakings of the Transferor Companies or to the benefit of which the Transferor Companies may be eligible and which are subsisting or having effect immediately before the Effective Date, including all rights and benefits (including benefits of any deposit, advances, receivables or claims) arising or accruing therefrom, shall be deemed to be approvals and permissions / licenses, contracts, deeds, bonds, agreements, schemes, arrangements and other instruments, permits, rights, entitlements, licenses of the Transferee Company, upon the Scheme becoming effective on the Effective Date and with effect from the Amalgamation Appointed Date, by operation of law pursuant to the vesting order of the Tribunal. In relation to the same any procedural requirements required to be fulfilled solely by the Transferor Companies (and not by any of its successors) shall be fulfilled by the Transferee Company as if it is the duly constituted attorney of the Transferor Companies. All agreements entered into by the Transferor Companies shall stand transferred and vested in favour of the Transferee Company on the same terms and

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For, Ideal Textile Machinery Components Pvt. Ltd.
Director

conditions. The Transferee Company and the other parties to such agreements shall continue to comply with the terms, conditions and covenants thereunder.

1.7. Upon the Scheme being becoming effective on the Effective Date, all legal proceedings, including any notices, disputes, pending suits, appeals or tax, regulatory, quasi-judicial, administrative or other proceedings of whatsoever nature relating to the Transferor Companies, then pending by or against the Transferor Companies shall not abate, be discontinued or in any way prejudicially affected by reason of the amalgamation of the Transferor Companies or of anything contained in this Scheme, but the proceedings shall continue and any prosecution shall be enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued, prosecuted and/or enforced by or against the Transferor Company, as if this Scheme had not been implemented.

1.8. The transfer and vesting of the Undertakings of the Transferor Companies and the assets, rights, powers and property, liabilities, obligations and duties, under Clauses 1.5 to 1.6 hereof and the continuance by the Transferor Companies under Clause 1.7 hereof, of all proceedings by or against the Transferor Company in the ordinary course of business on and after the Amalgamation Appointed Date, shall be to the end and intent, that the Transferor Companies accept on behalf of itself, all acts, deeds and things done and executed by the Transferor Company on or after the Amalgamation Appointed Date and up to the Effective Date.

1.9. (a) On and with effect from the Amalgamation Appointed Date and until the Effective Date, the Transferor Companies shall be deemed to have been carrying on its business and activities for and on account of the Transferee Company and all income and profits accruing or losses incurred by the Transferor Companies from and after the Amalgamation Appointed Date and up to the Effective Date, shall for all purposes be treated as income, profits or losses, as the case may be, of the Transferee Company, available for being disposed of or absorbed or otherwise dealt with, in such manner as the Transferee Company shall deem fit.

(b) The Transferor Companies, may, as on and from the Effective Date, carry on, either in the Transferee Company's own name or in the name of the Transferor Company, as the circumstances may require, such of the business, contracts, transactions etc. of the Transferor Company, as are unfinished or incomplete and as may be necessary to be transacted and completed.

(c) On and with effect from the Amalgamation Appointed Date and until the Effective Date, all accretions and depletions in respect of the Undertakings relation to the Transferor Companies shall be for and on account of the Transferee Company.

1.10. Subject to the other provisions contained in this Scheme, all contracts, deeds, agreements, arrangements, schemes, bonds and other instruments of whatsoever nature whether pertaining to immoveable properties or otherwise subsisting or having effect immediately before the Effective Date, to which the Transferor Companies are parties or the benefit of which accrues in favour of the Transferor Companies, shall be enforced as fully and effectually as if, instead of the Transferor Companies, the Transferee Company has been a party or beneficiary or obligee thereto or thereunder.

1.11. The transfer under Clauses 1.1 to 1.6 thereof, of the Undertakings, properties and liabilities of the Transferor Companies and the continuance of the proceedings by or against the Transferee Company under Clause 1.7 hereof, shall not affect any transactions or proceedings already concluded by the Transferor Companies on and after the Amalgamation Appointed Date and the Transferee Company shall accept and adopt all such transactions or proceedings, as if done and executed on behalf of or by itself. Furthermore, as from the Amalgamation Appointed Date, the Transferor Companies shall be deemed to have carried on and to be carrying on business on behalf

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of the Transferee Company until this Scheme becomes effective and shall account to, and be entitled to be indemnified by, the Transferee Company.

1.12. For the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon coming into effect of this Scheme, all consents, permissions, licenses, certificates, clearances, authorities, power of attorney given by issued to or executed in favour of the Transferor Companies shall transfer to the Transferee Company as if the same were originally given by or executed in favour of the Transferee Company and the Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder and the rights and benefits shall be available to the Transferee Company. The Transferor Companies shall make applications and shall do all acts or things which may be necessary to obtain relevant approvals from the concerned government authorities in this behalf.

1.13. It is herein clarified that the Transferee Company will, at any time after coming into effect of this Scheme, in accordance with provisions herein, if so required under any law or otherwise, execute appropriate deeds of confirmation or other writings or arrangements with any party to any contract or arrangements in relation to Transferor Companies to which the Transferor Companies are parties, in order to give formal effect to the above provisions. The Transferor Companies shall under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the Transferor Companies and to carry out or perform all such formalities or compliances referred to above on part of the Transferor Companies.

## 2. CONSIDERATION:

2.1. Upon the Scheme becoming fully effective on the Effective Date, in consideration of the amalgamation and transfer and vesting of all assets and liabilities, duties, rights and obligations relating to the Transferor Companies in terms of Part D of the Scheme, the Transferee Company shall, issue and allot to the Shareholders of the Transferor Companies:

(a) 3.38 equity shares of the Transferee Company of face value INR 100 each credited as fully paid-up (the "**New Equity Shares**") of the Transferee Company for every 1000 equity shares of face value INR 100 (Rupees One Hundred) up held by the equity Shareholders in the Transferor Company 1, as on the Record Date of Amalgamation; and

(b) 448.75 New Equity Shares of the Transferee Company of face value INR 100 each credited as fully paid-up (the "**New Equity Shares**") of the Transferee Company for every 1000 equity shares of face value INR 100 (Rupees One Hundred) up held by the equity Shareholders in the Transferor Company 2, as on the Record Date of Amalgamation

The equity shares so issued and allotted, shall rank pari passu in all respects with the existing equity shares of the Transferee Company.

2.2. No shares shall be issued in respect of fractional entitlements, if any, by the Transferee Company, to which the Shareholders of the Transferor Companies may be entitled on issue and allotment of New Equity Shares of the Transferee Company.

2.3. Each Shareholder of the Transferor Company shall receive the New Equity Shares of the Transferee Company in physical form, represented by duly stamped share certificates of the Transferee Company.

2.4. The authorized share capitals of the Transferor Companies aggregating to Rs. 10,00,000 or such amount as may be on the Appointment Date, shall be added to and shall form part of the authorized share capital of the Transferee Company. Accordingly, the authorized share capital of the Transferee Company shall stand increased to the extent without payment of any fees or charges to the Registrar of Companies. However, in the event of any charges becoming payable, the Transferee Company undertakes to pay the same to the statutory authorities.

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Consequent upon the addition of the authorized capital of all the Transferor Companies, in the authorized capital of the Transferee Company, Clause V of the Memorandum of Association of the Transferee Company shall be replaced as under: -

"The Authorised Share Capital of the Company is Rs. 20,00,000/- (Rs. Twenty Lacs Only) divided into 20,000 (Twenty Thousand) Equity Shares of Rs. 100/- each."

Under the accepted principle of Single Window Clearance, it is hereby provided that the above referred change, viz. Change in the Capital Clause shall become operative on the Scheme being effective by virtue of the fact that the Shareholders of the Transferee Company, while approving the scheme as a whole, have also resolved and accorded the relevant consents as required respectively under Sections 13, 42,61, 62, and /or 64 of the Companies Act, 2013 or any other provisions of the Act and shall not be required to pass separate resolutions as required under the Act.

2.5. In respect of the shares of the Transferor Company 1 and Transferee Company held by the Transferor Company 2, pursuant the Scheme, no shares shall be issued to the Transferor Company 2 in respect of the same and the current shareholding of the Transferor Company 2 in the Transferee company would be considered as nil Upon the Scheme being becoming effective on the Effective Date.

## 3. ACCOUNTING TREATMENT IN THE BOOKS OF THE TRANSFEREE COMPANY:

3.1. After giving effect to Part D of the Scheme, the Transferee Company shall account the amalgamation of the Transferor Companies as per the pooling of interest method as set-out in Accounting Standard (AS 14) and/or other applicable accounting standards as specified under section 133 of Act.

3.2. The Transferee Company shall, upon the Scheme being sanctioned by the National Company Law Tribunal, record the assets and liabilities of the Transferor Companies vested in it pursuant to this Scheme, at the respective book values thereof as appearing in the books of the Transferor Companies, prepared in accordance with Accounting Standards.

3.3. Amounts lying in the balance of the "Profit and Loss Account" in the books of accounts of the Transferor Companies shall be adjusted by the Transferee Company to its "Profit and Loss Account".

3.4. The inter-company balances between the Scheme Entities, if any appearing in the books of the Scheme Entities shall stand cancelled. Further, the value of investments, if any, held by the Scheme Entities *inter se* on the Amalgamation Appointed Dated shall stand cancelled pursuant to the amalgamation.

3.5. The difference between the share-capital of the Transferor Companies and the book value of the investments cancelled in terms of Clause 3.4 above shall be transferred to capital reserve and would be presented separately from other capital reserves in the books of the Transferee Company.

3.6. Subject to the above, the reserves of the Transferor Companies shall be incorporated in the books of the Transferee Company in the same form as they appeared in the financial statements, prepared in accordance with Accounting Standards, of the Transferor Companies.

3.7. Further, in case of any difference in accounting policy between the Transferor Companies and the Transferee Company, the impact of the same till the amalgamation will be quantified and adjusted in the retained earnings of the Transferee Company, to ensure that the financial statements of the Transferee Company reflect the financial position based on consistent accounting policy.

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**4. TRANSACTIONS RELATING TO THE TRANSFEROR COMPANIES BETWEEN AMALGAMATION APPOINTED DATE AND EFFECTIVE DATE:**

During the period between the Amalgamation Appointed Date and the Effective Date:

4.1. The Transferor Companies shall carry on and be deemed to have carried on its business and activities for and on account of and in trust for the Transferee Company;

4.2. The Transferor Companies shall carry on business and activities in the ordinary course of business with reasonable diligence and business prudence and shall not alter and substantial expand its business except with the concurrence of the Transferee Company;

4.3. All the profits or income accruing or arising to the Transferor Companies or expenditure or losses arising or incurred by the Transferor Companies shall for all purposes be treated and deemed to be and accrue as the profits or income or expenditure or losses (as the case may be) of the Transferee Company;

4.4. The Transferor Companies shall not without the written consent of the Transferee Company alienate, charge or encumber any of their properties except in the ordinary course of business or pursuant to any pre-existing obligation undertaken prior to the date of acceptance of this Scheme by the Board of Directors of the Transferor Companies as the case may be;

4.5. With effect from the Amalgamation Appointed Date, all debts, liabilities, duties and obligations of Transferor Companies as on the close of business on the date preceding the Amalgamation Appointed Date whether or not provided in its books and all liabilities which arise or accrue on or after the Amalgamation Appointed Date shall be deemed to be the debts, liabilities, duties and obligations of the Transferee Company;

4.6. Upon the Scheme coming into effect on the Effective Date, the Transferee Company shall commence or carry on and shall be authorized to carry on the business carried on by the Transferor Companies;

4.7. For the purposes of giving effect to the vesting order, the Transferee Company shall at any time pursuant to the order passed by the NCLT approving the Scheme, be entitled to get recorded all the changes in the legal right(s) upon the vesting of the Transferor Companies' business and Undertakings in accordance with the provisions of Sections 230 to 232 of the Act. The Transferee Company shall be authorized to execute any pleadings, applications, forms etc. as are required to remove any difficulties and carry out any formalities as are necessary for the implementation of this Scheme.

**5. STAFF, WORKMEN & EMPLOYEES:**

5.1. After giving effect to Part D of the Scheme, on the Scheme becoming effective on the Effective Date, all staff, workmen and employees, who are employed in the Transferor Companies, employees/personnel engaged on contract basis (if any), contract labourers (if any) and interns/trainees (if any) of the Transferor Companies, who are in service on the Effective Date, shall be deemed to have become staff, workmen, employees, employees/personnel engaged on contract basis, contract labourers or interns/trainees, as the case may be, of the Transferor Companies, with effect from the Amalgamation Appointed Date, without any break in their service and on the basis of continuity of service, and the terms and conditions of their employment with the Transferee Company shall not be less favorable than those applicable to them in the respective Transferor Companies prior to the Amalgamation Appointed Date.

5.2. As far as the provident fund, gratuity fund, superannuation fund or any other special fund created or existing for the benefit of such employees of the Transferor Companies are concerned, on and from the Effective Date, the Transferee Company shall stand substituted for the Transferor Companies for all the purposes whatsoever related to administration or operation of such funds, including the obligation to make contributions to relevant authorities, if any, in accordance with provisions of such funds according to the terms provided in the respective trust deeds, provisions of applicable

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law or otherwise. It is clarified that the services of such employees of the respective Transferor Companies will be treated as having been continuous and not interrupted for the purposes of such funds.

5.3. Till the Effective Date of the Scheme, the Transferor Companies shall make contribution to the Government Authority maintained provident fund and/or other funds in relation to the staff, workmen and employees of the Transferor Companies. On and from the Effective Date, the Transferee Company shall make appropriate contribution to such provident fund and/or other fund in respect of the staff, workmen and employees taken over by it pursuant to the Scheme. The contributions and all accretions thereto in the provident fund account, superannuation fund, gratuity fund and other benefit funds, if any, of which the employees of the respective Transferor Companies are members or beneficiaries till the Effective Date, shall with the approval of the concerned authorities be transferred (in such proportion as is allocable to the employees of the respective Transferor Companies being transferred to the Transferee Company) to the relevant funds of the Transferee Company or Government Authority for the benefit of the employees of the respective Transferor Companies on terms no less favourable than immediately existing prior to the Effective Date.

5.4. The Transferee Company undertakes that for the purpose of payment of any retrenchment compensation, gratuity and other terminal benefits to the employees of the respective Transferor Companies, the past services of such employees with the respective Transferor Companies shall also be taken into account and it shall pay the same accordingly, as and when such amounts are due and payable. Upon this Scheme becoming effective, the Transferor Companies will transfer / handover to the Transferee Company, copies of employment information, including but not limited to, personnel files (including hiring documents, existing employment contracts, and documents reflecting changes in an employee's position, compensation, or benefits), payroll records, medical documents (including documents relating to past or ongoing leaves of absence, on the job injuries or illness, or fitness for work examinations), disciplinary records, supervisory files relating to its and all forms, notifications, orders and contribution / identity cards issued by the concerned authorities relating to benefits transferred pursuant to this Clause.

**6. LEGAL PROCEEDINGS:**

6.1. With effect from the Amalgamation Appointed Date and upon the Scheme being effective, the Transferee Company shall bear the burden and the benefits of any legal or other proceedings including direct or indirect assessments, if any, initiated against the Transferor Companies or by the Transferor Companies.

6.2. All legal proceedings of whatsoever nature by or against the Transferor Companies pending at the Amalgamation Appointed Date and or arising after the Amalgamation Appointed Date till the Effective Date pending in any court or before any authority, judicial, quasi-judicial, administrative, tribunal, appellate tribunal, any adjudicating authority shall be continued and enforced by or against the Transferee Company in the manner and to the same extent as would or might have been continued and enforced by or against the Transferor Companies, as and from the Effective Date.

6.3. After the Amalgamation Appointed Date, if any proceedings are taken against the Transferor Companies in respect of the matters referred to in Clause 6.1 it shall defend the same at the cost of the Transferee Company and the Transferee Company shall reimburse and indemnify the Transferor Companies against all liabilities and obligations incurred by the Transferor Companies in respect thereof.

6.4. The Transferee Company undertakes to have all legal or other proceedings initiated by or against the Transferor Companies referred to in Clause 6.1, transferred into its name and to have the same continued, prosecuted and enforced by or against the Transferee Company to the exclusion of the Transferor Companies.

6.5. If any legal proceedings of whatsoever nature by or against the Transferor Companies be pending the same shall not abate, be discontinued or be in any way be prejudicially affected by reason of amalgamation of the Transferor Companies or of anything

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contained in this Scheme, but the proceedings may be continued, prosecuted and enforced by or against the Transferee Company in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against Transferor Companies as this Scheme had not been made.

## 7. TAXES AND OTHER MATTERS

7.1. Upon the Scheme becoming effective, and with effect from the Amalgamation Appointed Date, all taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax credits, bank cash transaction tax, securities transaction tax, sales tax, service tax, etc.), duties, cess of any nature paid or payable including any deduction at source, service tax input credit or GST input credit receivables, entry tax, sales tax, excise duty, custom duty, service tax, VAT, GST paid or payable by the Transferor Companies in respect of its operation, assets and or the profits of the Transferor Companies shall be deemed to have been on account of or on behalf of or paid or payable by the Transferee Company. Further, upon the Scheme coming into effect on the Effective Date and with effect from the Amalgamation Appointed Date, all deduction otherwise admissible to the Transferor Companies including payment admissible on actual payment or on deduction of appropriate taxes or on payment of tax deducted at source (such as under Section 43B, Section 40, Section 40A etc. of the Income Tax Act) shall be eligible for deduction to the Transferee Company upon fulfilment of the required conditions under the Income Tax Act. Further, the Transferee Company shall be entitled to claim credit for taxes deducted at source/ paid against its tax/ duty liabilities/ minimum alternate tax, advance tax, goods and services tax, service tax, value added tax liability etc., notwithstanding the certificates/ challans or other documents for payment of such taxes/duties, as the case may be, being in the name of the Transferor Companies. Further, any tax incentives, advantages, privileges, exemptions, credits, holidays, remissions, reductions as would have been available to the Transferor Companies on or before the Amalgamation Appointed Date shall be available to the Transferee Company.

7.2. All taxes, duties, entry tax, sales tax, excise duty, custom duty, service tax, VAT, GST paid or payable by the Transferor Companies in respect of its operation, assets and or the profits of the Transferor Companies before the Appointed Date shall be on account of the Transferor Companies and in so far as it relates to the tax payment (including without limitation , income tax, minimum alternate tax (MAT), dividend distribution tax, wealth tax, sales tax, excise duty, custom duty, service tax, VAT ,GST etc. whether by way of deduction at source, advance tax, or otherwise howsoever, by the Transferor Companies in respect of the profits or activities or operations of the Transferor Companies with effect from the Amalgamation Appointed Date shall be deemed to be corresponding item paid by the Transferee Company and shall in all proceedings, be dealt with accordingly. The relevant tax authorities shall be bound to transfer to the account and give credit for the same to the Transferee Company upon the effectiveness of the Scheme on the Effective Date and upon relevant proof and documents being provided to the said authorities.

7.3. Any refund under the tax laws due to the Transferor Companies consequent to the assessment made on the Transferor Companies and for which no credit is taken in the accounts as on the date immediately preceding the Amalgamation Appointed Date shall also belong to and be received by the Transferee Company. The Transferor Companies are expressly permitted to revise and file income tax returns, sales tax/VAT returns, GST, excise duty, custom duty and other returns and to claim refunds/credits pursuant to the Scheme. The Transferor Companies shall be entitled to such tax benefits under the Income Tax Act and to claim credits therefore in accordance with the provisions of Income Tax Act including the benefit of depreciation as admissible under the provisions of Income Tax Act. The Transferee Company shall continue to enjoy the tax benefits/concessions, if any provided to the Transferee Company through notifications/circulars issued by the concerned authorities.

7.4. The income tax, if any, paid by the Transferor Companies on or after the Appointed Date in respect of income assessable from the date, shall be deemed to have been paid by or for the benefit of the Transferee Company. Further, the Transferee Company shall after the Effective Date be entitled to revise the relevant returns, if any, filed by the

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Transferee Company for any year, if so necessitated or consequent to the Scheme notwithstanding that the time prescribed for such revision may have elapsed.

7.5. From the Effective Date and till such time the name of the Transferee Company would get entered as the account holder in respect of all the bank accounts and dematerialized accounts of the Transferor Companies in the relevant bank's/DP's books or records, the Transferee Company shall be entitled to operate the bank account of the Transferor Companies in the name of the Transferor Companies.

7.6. Upon the Scheme coming into effect on the Effective Date and with effect from the Amalgamation Appointed Date, the accounts of the Transferee Company as on the Amalgamation Appointed Date shall be reconstructed in accordance with the applicable provisions and terms of this Scheme, the Act, the Income Tax Act and other applicable laws. Further, upon the Scheme coming into effect on the Effective Date and with effect from the Amalgamation Appointed Date, the Transferee Company will be expressly permitted to revise / reopen and file income tax returns including tax deducted at source certificates, and other tax returns in terms of the applicable laws, and to claim refunds / credits and advance tax / tax deducted at source / minimum alternate tax credits, pursuant to the provisions of the Scheme.

## 8. OTHER PROVISIONS

8.1. Notwithstanding anything contained in the provisions of Section 13 and other relevant provisions of the Act, upon the Scheme becoming effective, the main objects contained in the Memorandum of Association of the Transferee Company shall include the main objects included in the Memorandum of Association of the Transferor Companies.

8.2. The Scheme Entities, as the case may be, shall, at any time after this Scheme comes into effect in accordance with the provisions hereof, if so required under any applicable law or otherwise, do all such acts or things as may be necessary to transfer/obtain the approvals, consents, exemptions, registrations, no-objection certificates, permits, quotas, rights, entitlements, licenses and certificates which were held or enjoyed by the Transferor Companies. It is hereby clarified that if the consent of any third party or Government Authority is required to give effect to the provisions of this Clause, the said third party or Government Authority shall be obligated to, and shall make and duly record the necessary substitution/endorsement in the name of the Transferee Company pursuant to the sanction of this Scheme by the Tribunal, and upon this Scheme becoming effective in accordance with the terms hereof. For this purpose, the Transferee Company shall file appropriate applications/documents with relevant authorities concerned for information and record purposes. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of the Transferor Companies and to carry out or perform all such acts, formalities or compliances referred to above as may be required in this regard.

8.3. Upon the Scheme coming into effect on the Effective Date and with effect from the Amalgamation Appointed Date, benefits of any and all corporate approvals as may have been taken by the Transferor Companies, whether being in the nature of compliances or otherwise, including without limitation, approvals, if any, under, Sections 188 of the Act, and any other approvals under the Act shall stand transferred to the Transferee Company and the said corporate approvals and compliances shall be deemed to have been taken / complied with by the Transferee Company.

8.4. Upon the Scheme coming into effect on the Effective Date and with effect from the Amalgamation Appointed Date, the Transferee Company shall be entitled to the benefit of the past experience and/or performance of the Transferor Companies for all purposes without any further act, instrument or deed required by any of the Scheme Entities and without any approval or acknowledgement being required from any third party. If any instrument or deed or document is required or deemed necessary or expedient to give effect to the provisions of this Clause by the Transferee Company, the Transferor Companies shall duly execute the same and duly record the necessary

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substitution/endorsement in the name of the Transferee Company pursuant to the Scheme becoming effective in accordance with the terms hereof. The Transferee Company shall, under the provisions of the Scheme, be deemed to be authorised to execute any such writings on behalf of the Transferor Companies and to carry out or perform all such formalities or compliances referred to above on behalf of the Transferor Companies.

8.5. Upon the Scheme coming into effect on the Effective Date and with effect from the Amalgamation Appointed Date, the secured creditors of the Transferee Company shall only continue to be entitled to security over such properties and assets forming part of the Transferee Company, as existing immediately prior to the amalgamation of the Transferor Companies into and with the Transferee Company and the secured creditors of the Transferor Companies shall continue to be entitled to security over such properties, assets, rights, benefits and interest of and in the Transferor Companies, as existing immediately prior to the amalgamation of the Transferor Companies into and with the Transferee Company, unless otherwise agreed in writing with such creditor. It is hereby clarified that all the assets of the Transferee Company and the Transferor Companies which are not currently Encumbered shall remain free and available for creation of any security thereon in future in relation to any new indebtedness that may be incurred by the Transferee Company. For this purpose, no further consent from the existing secured creditors shall be required and sanction of this Scheme shall be considered as a specific consent of such secured creditors.

## PART E: GENERAL TERMS AND CONDITIONS

### CONDITIONALITY OF THE SCHEME:

This Scheme is and shall be conditional upon and subject to:

.1. The approval of requisite majority of members and creditors of the Scheme Entities, either by giving consent in writing or at a meeting as may be directed by National Company Law Tribunal;

.2. The Scheme being sanctioned by the National Company Law Tribunal under Sections 230 to 232 of the Act and any other applicable provision of the Act;

.3. The certified copies of the orders of the National Company Law Tribunal under Sections 230 to 232 of the Act sanctioning the Scheme are filed with the Registrar of Companies, Gujarat; and

.4. Compliance with such other conditions as may be imposed by the National Company Law Tribunal.

### APPLICATION TO NATIONAL COMPANY LAW TRIBUNAL:

.1. Each of the Scheme Entities shall, with all reasonable diligence, make and pursue applications / petitions to the National Company Law Tribunal for sanctioning this Scheme under Section 230 to232 of the Act, for carrying this Scheme into effect and for dissolution of the Transferor Companies without winding up.

.2. Each of the Scheme Entities shall make appropriate applications, petitions to the National Company Law Tribunal under Section 230 to 232 and other applicable provisions of the Act seeking orders for dispensing with or convening, holding and conducting of the meetings of the classes of their respective members and/or the creditors and for sanctioning the Scheme with such modifications as may be approved by the National Company Law Tribunal.

.3. Upon this Scheme being approved by the requisite members or creditors of the Scheme Entities, each of the Scheme Entities shall apply to the National Company Law Tribunal for sanction of the Scheme under Section 230 to 232 and other applicable provisions of the Act and for such other orders and orders as the said National Company Law Tribunal may deem fit for carrying the Scheme into effect.

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.4. On approval of the Scheme by the members or creditors of each of the Scheme Entities, the Scheme Entities shall pursuant to the Sections 230 to 232 of the Act it shall be deemed that all consents required from the Shareholders or creditors as the case may be of the said companies under the provisions of the Act as may be applicable, have been accorded to, as permitted under applicable laws.

**MODIFICATIONS:**

The Scheme is subject to such modifications as the National Company Law Tribunal may impose, and/or the Board of Directors of each Scheme Entity may affect or assent to, on behalf of all concerned and the Board of Directors of each Scheme Entity may do such other acts, deeds and things as may be necessary for carrying this Scheme into effect. Each Scheme Entity by their respective Board of Directors shall be authorised to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/ or any matter concerned or connected therewith.

**EFFECT OF NON-RECEIPT OF APPROVALS/SANCTIONS:**

.1. In the event any of the necessary and relevant approvals or conditions enumerated in the Scheme or otherwise, not being obtained or complied with, or for any other reason, the Scheme cannot be implemented, the Board of Directors of each of the Scheme Entities shall mutually waive such conditions as they consider appropriate to give effect, as far as possible, to this Scheme and failing such mutual agreement, or in case the Scheme is not sanctioned by the National Company Law Tribunal, the Scheme shall become null and void and each party shall bear and pay their respective costs, charges and expenses in connection with the Scheme.

.2. Further, in the case of non-receipt of necessary and relevant approvals to the Scheme, no rights and liabilities whatsoever shall accrue to or be incurred inter-se by the Scheme Entities or their respective Shareholders or creditors or employees or any other person.

.3. Each of the Scheme Entities shall have the discretion to withdraw the application and/or the petition from the National Company Law Tribunal, if any, onerous terms or other terms are not acceptable to them at the time of sanction of the Scheme.

**FILING OF THE APPLICATIONS**

This Scheme shall become operative on the Effective Date. Upon coming into effect of the Scheme, all permissions, licenses, approvals, incentives, remissions, tax-incentives, consents, sanctions, and other authorizations, pertaining to the activities of the Transferor Company, to which the Scheme Entities are entitled to shall stand vested and permitted or continued by the order of sanction of the National Company Law Tribunal in the Transferee Company without payment of any duty or any other similar duty, other than that required under applicable law. Therefore, the Transferee Company shall file the Scheme, for the record of the Governmental Authorities who shall take it on file, pursuant to the sanction orders of the National Company Law Tribunal. The Transferee Company is authorized to take all such steps on behalf of the Transferor Company as may be necessary to give effect to the provisions contained above.

**DISSOLUTION OF TRANSFEROR COMPANIES:**

On the Scheme becoming effective on the Effective Date, each of the Transferor Companies shall be dissolved without the process of winding up in accordance with the provisions of the Act and rules made there under.

**TAX CREDITS**

Each of the Transferor Company, the Transferee Company / Demerged Company and the Resulting Company are expressly permitted to file/revise their Income Tax, Wealth Tax, Service Tax, Excise and other statutory returns, consequent to the scheme becoming effective, notwithstanding that the period for filing/revising such returns may

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For, Ideal [illegible]

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have lapsed. The Transferor Company, the Transferee Company / Demerged Company and the Resulting Company are expressly permitted to amend TDS/TCS or other statutory certificates and shall have the right to claim refunds, advance tax credits, set offs, adjustments etc., relating to their respective incomes/transactions from the Amalgamation Appointed Date or the Demerger Appointed Date, as the case may be. It is specifically declared that the taxes/duties paid by the Transferor Company relating to the period on or after the Amalgamation Appointed Date whether by way of deduction at source or advance, pertaining to the activities of the Transferor Company, shall be deemed to be the taxes/duties paid by the Transferee Company and the Transferee Company shall be entitled to claim credit for such taxes deducted/paid against its tax/duty liabilities notwithstanding that the certificates/challans or other documents for payment of such taxes/duties are in the name of the Transferor Company. It is declared that all the tax losses pertaining to the activities of the Transferor Company upto the Amalgamation Appointed Date will be transferred to the Transferee Company. Further any tax, duty payments not directly relatable to the Transferor Company shall be apportioned between the Transferor Company and the Transferee Company on the appropriate basis as the Board of Directors of the Transferor Company and the Transferee Company mutually in their discretion deem fit and proper.

**SEVERABILITY**

Each section of the Scheme shall be given effect to as if each section is independent of the other sections and is severable. However, failure of any part of one section for lack of necessary approvals from the Shareholders/creditors/statutory or regulatory authorities or for any other reasons that the Board of Directors of the Scheme Entities as they may deem fit, shall not result in the whole Scheme failing. It shall be open to the Board of Directors concerned to consent to severe such part(s) of the Scheme and implement the rest of the Scheme with such modifications as they may deem fit.

**COST CHARGES AND EXPENSES**

All costs, charges and expenses of the Transferor Company and of the Transferee Company respectively, in relation to or in connection with negotiations leading up to this Scheme and carrying out and completing the terms and provisions of this Scheme and activities incidental to the completion of amalgamation in pursuance of this Scheme, shall be borne and paid by the Transferee Company.

**WITHDRAWAL OF THIS SCHEME**

Notwithstanding anything else to the contrary in this Scheme, each of the Scheme Entities (acting through their respective Board of Directors) shall be at liberty to withdraw from this Scheme for any reason as they deem fit.

**BINDING EFFECT**

Upon this Scheme becoming effective it shall be binding on each of the Scheme Entities and their respective Shareholders, creditors and all other stakeholders.

**MISCELLANEOUS**

.1. Though this Scheme shall become effective from the Effective Date, the provisions of this scheme shall be applicable and shall come into operation from the Amalgamation Appointed Date or the Demerger Appointed Date, as the case may be.

.2. To the extent necessary under the Scheme, upon this Scheme becoming effective, the resolutions, if any, of the Scheme Entities, which are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and if any such resolutions have any monetary limits approved under the provisions of the Act, as applicable, or any other applicable statutory provisions, then the said limits shall be added to the limits, if any, under like resolutions passed by the Transferee Company or and shall constitute the aggregate of the said limits in the Transferee Company. The Transferee Company hereby undertakes

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For, Ideal Textile Machinery Components Pvt. Ltd.

Director

that it shall take all steps and pass all resolutions, as may be necessary, to give effect to such actions of the Transferor Companies pursuant to this Scheme.

.3. Any direction or order given by the National Company Law Tribunal under the provisions of the Act and any act done by any of the Scheme Entities based on such directions or order shall be deemed to be in accordance with and consistent with the provisions of the Act. Accordingly, the provisions of the Act shall not be required to be separately complied with, in relation to acts done by the Scheme Entities as per direction or order of the National Company Law Tribunal sanctioning the Scheme under the Act.

.4. Until the Appointed Date, all the Transferor Companies and the Transferee Company, shall continue to hold their Annual General Meeting and other meetings in accordance with the relevant laws and shall continue to comply with all their statutory obligations.

FOR, IDEAL STATIONERY MFG. CO. PVT. LTD.

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Annexure "B"

**Schedule of Assets for Ideal Stationery Mfging Company Private Limited, the Transferor Company No. 1**

First Part

(Insert a short description of the freehold property of the transferor company)

Note: There are no physical assets in Ideal Stationery Mfging Company Private Limited, the Transferor Company No. 1

Second Part

(Insert a short description of the leasehold property of the transferor company)

Note: There are no physical assets in Ideal Stationery Mfging Company Private Limited, the Transferor Company No. 1

Third Part

(Insert a short description of all stocks, shares, debentures and other charges in action of the transferor company)

Note: There are no such assets in Ideal Stationery Mfging Company Private Limited, the Transferor Company No. 1

For, Ideal Stationery Mfg. Co. Pvt. Ltd.

Director

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

**Raji Bharatbhai Shah**
**DIN: 00373250**
**Authorised Person / Director**
**Ideal Stationery Mfging Co Private Limited**
**Applicant Company No. 1**

**Schedule of Assets for Ideal Textile Machinery Components Private Limited, the Transferor Company No. 2**

First Part

(Insert a short description of the freehold property of the transferor company)

Note: There are no physical assets in Ideal Textile Machinery Components Private Limited, the Transferor Company No. 2

Second Part

(Insert a short description of the leasehold property of the transferor company)

Note: There are no physical assets in Ideal Textile Machinery Components Private Limited, the Transferor Company No. 2

Third Part

(Insert a short description of all stocks, shares, debentures and other charges in action of the transferor company)

Note: There are no such assets in Ideal Textile Machinery Components Private Limited, the Transferor Company No. 2

For, Ideal Textile Machinery Components Pvt. Ltd.

Raji B. Shah

Director

**Raji Bharatbhai Shah**
**DIN: 00373250**
**Authorised Person / Director**
**Ideal Textile Machinery Components Private Limited**
**Applicant Company No. 2**